

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: June 9, 2025

TIME: 10:00 A.M.

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LINE #	CASE #	CASE TITLE	RULING
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Calendar line 1**Case Name:** *Jeswani Revocable Trust***Case No.:** 24PR198270**I. Background**

Sumanti Jeswani (“Decedent”) and Anisha Jeswani (“Petitioner”) were married and the Settlers/co-Trustees of the Jeswani Revocable Trust (“the Trust”), established June 22, 2018. Decedent passed away on September 1, 2024, leaving Petitioner as the current Trustee and Beneficiary of the Trust.

On November 14, 2024, the Court (Hon. Takaichi), signed an order deeming the non-Texas assets as assets of the Trust, but denied, without prejudice, the request to deem five Texas properties as assets of the Trust.

On April 25, 2025, Petitioner filed a petition to confirm trust assets. On May 5, 2025, the Court (Hon. Rosen) held a hearing regarding venue, but the Court was unpersuaded by Petitioner’s counsel’s arguments and continued the hearing to June 9, 2025.

The Texas properties were validly conveyed into the Trust. Thus, the remaining issue is whether a California court order stating that the Texas properties are assets of the trust is recordable and enforceable in Texas.

II. Court’s Jurisdiction Over Out-of-State Properties

Petitioner relies on several sections of the Family and Probate Codes to support the argument that California law specifically authorizes a court to make determinations regarding title of out of state real property. In particular, Petitioner relies on the Family Code’s definition of “community property” to argue that the Court has authority to divide community property and quasi-community property in another state. (Motion, p. 3:15-28, citing Fam. Code, §§ 125, 760, 2010(e), and 2660.) Portions of the Family Code provide the Court with jurisdiction to inquire into the settlement of property rights in a proceeding for dissolution of marriage, nullity of marriage, or for legal separation of the parties. (See Fam. Code, § 2010(e).)

Petitioner continues that because the Probate Code does not limit community property to in-state property, the Court has jurisdiction over this matter. (See Motion, p. 4:4-8, citing Prob. Code, § 28(a).) Section 28, subdivision (a) of the Probate Code defines community property, in part, as: “property heretofore or hereafter acquired during marriage by a married person while domiciled in the state.” (Prob. Code, § 28(a).) Petitioner asserts that “[n]owhere in Sections 850 through 859 are limitations put on the Court’s ability to enter orders effecting out of state property, either real or personal.” (Motion, p. 4:15-18.) The Court is not persuaded that these sections of the Family Code or Probate Code work to confer jurisdiction on this Court.

California Courts have consistently held that a “court of one state cannot directly affect or determine the title to land in another.” (See *Rozan v. Rozan* (1957) 49 Cal.2d 322, 330.) More specifically, a court does not have jurisdiction to determine title to real property situated in another state, even if it does have jurisdiction to determine the character of that property. (See *Riggs v. Riggs* (1963) 223 Cal.App.2d 594, 602; see also *Getty v. Getty* (1933) 130

Cal.App. 519, 519, 520 [“courts within the state could not affect the res. . . . [T]he courts of California cannot make a decree that will operate to change the title to real or personal property beyond the territorial limits of the states.”].) A determination by this Court that the Texas properties are assets of the Trust would necessarily change title to the real property currently in the name of Decedent (see Petition, ¶ 9), as the Trustee would then hold legal title to the properties. (See e.g., *Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464, 473 [“Legal title to property owned by a trust is held by the trustee[.]”]; *Boshernitsan v. Bach* (2021) 61 Cal.App.5th 883, 888 [“As a matter of law, only trustees – not trusts – can hold legal title to property.”].) Accordingly, this Court does not have jurisdiction to determine the Texas properties are assets of the Trust.

Based on the foregoing, the petition to confirm trust assets is DENIED.

III. Conclusion and Order

The petition to confirm trust assets is DENIED. The Court will prepare the final order.